

Issue

Can PSO's compile preliminary or full briefs of evidence in a criminal proceeding in the summary jurisdiction (Magistrates' Court of Victoria)?

In narrowing down this question, the following components need to be answered:

1. Can a PSO sign a charge-sheet and thereby commence a criminal proceeding?
2. Can a PSO sign the "Statement Made by the Informant", which forms the preliminary brief?

In answering the question, I will use a scenario:

PSO BLOGGS is at a train station, located a person, conducted a search of that person. In the course of that search, he found Possess Drug of Dependence.

PSO BLOGGS wants to charge and compile a brief of evidence for that indictable offence.

Rule

CRIMINAL PROCEDURE ACT 2009 - DEFINITIONS

"*police officer*" has the same meaning as in the Victoria Police Act 2013 ;

"*protective services officer*" has the same meaning as in the Victoria Police Act 2013 ;

"*public official*" means—

- (a) a public official within the meaning of the Public Administration Act 2004 ; or
- (b) a person employed by, or the holder of an office in, or on the governing body of a Council within the meaning of the Local Government Act 2020 ; or
- (c) in the case of a charge for an offence referred to in section 24ZW(1) of the Prevention of Cruelty to Animals Act 1986 , a full-time officer of the Royal Society for the Prevention of Cruelty to Animals authorised under section 24ZW(1)(b) of that Act;

VICTORIA POLICE ACT 2013 - DEFINITIONS

police officer means—

- (a) the Chief Commissioner; or
- (b) a Deputy Commissioner; or
- (c) an Assistant Commissioner; or
- (d) a person appointed under Division 5 of Part 3;

NOTE: Part 3, Division 5 is *exclusive* from PSO's. PSO's are mentioned at Division 7 and would not qualify under that definition.

CRIMINAL PROCEDURE ACT 2009 - SECT 5

How a criminal proceeding is commenced

A criminal proceeding is commenced by—

- (a) filing or signing a charge-sheet in accordance with section 6; or
- (b) filing a direct indictment in accordance with section 159; or
- (c) a direction under section 415 that a person be tried for perjury.

CRIMINAL PROCEDURE ACT 2009 - SECT 6

Commencement of a criminal proceeding in the Magistrates' Court

(1) A criminal proceeding is commenced—

- (a) by filing a charge-sheet containing a charge with a registrar of the Magistrates' Court; or
- (b) if the accused is arrested without a warrant and is released on bail, by filing a charge-sheet containing a charge with a bail justice; or
- (c) if a summons is issued under [section 14](#), at the time the charge-sheet is signed.

(2) If a charge-sheet is filed in accordance with the method prescribed by the rules of court for electronic filing, the requirements of section 8(1) of the Electronic Transactions (Victoria) Act 2000 are taken to have been met.

(3) A charge-sheet **must**—

- (a) be in writing; and
- (b) be signed by the informant personally; and
- (c) comply with Schedule 1.

(4) The informant may include a request for a committal proceeding in a charge-sheet containing a charge for an indictable offence that may be heard and determined summarily.

CRIMINAL PROCEDURE ACT 2009 - SECT 12

Court may issue summons or warrant to arrest

(1) On the filing of a charge-sheet under section 6, an application may be made to a registrar of the Magistrates' Court for the issue of—

- (a) a summons to answer to the charge directed to the accused; or
- (b) a warrant to arrest in order to compel the attendance of the accused—
unless a notice to appear has been served on the accused under Division 2.

(2) An application under subsection (1)(b) must be made by the informant personally but an application under subsection (1)(a) may be made by the informant or a person on behalf of the informant.

(3) An application under subsection (1) may be made by the applicant in person or by post.

(4) On an application under subsection (1), the registrar must, if satisfied that the charge discloses an offence known to law, issue—

- (a) a summons to answer to the charge; or
- (b) subject to subsection (5), a warrant to arrest.

(5) A registrar of the Magistrates' Court must not issue in the first instance a warrant to arrest unless satisfied by sworn or affirmed evidence, whether oral or by affidavit, that—

- (a) it is probable that the accused will not answer a summons; or
- (b) the accused has absconded, is likely to abscond or is avoiding service of a summons that has been issued; or
- (c) a warrant is required or authorised by any other Act or for other good cause.

CRIMINAL PROCEDURE ACT 2009 - SECT 14

Police or public official may issue summons

(1) Without limiting the power of a registrar of the Magistrates' Court in any way—

- (a) a police officer; or
- (b) a public official acting in the performance of his or her duty (whether the power to commence the proceeding is conferred on him or her by or under an Act or at common law)—
may, after signing a charge-sheet containing a charge, issue a summons to answer to the charge.

(2) If a police officer or a public official issues a summons under subsection (1), he or she must file the charge-sheet and summons with the appropriate registrar within 7 days after signing the charge-sheet.

(3) If it appears to the Magistrates' Court that subsection (2) has not been complied with in relation to a proceeding, the court may strike out the charge.

CRIMINAL PROCEDURE ACT 2009 - SECT 35

When preliminary brief is to be served

- (1) If required to do so by section 24, the informant must serve a preliminary brief on the accused.
- (2) At any time after the commencement of a proceeding, the accused, by written notice to the informant, may request that a preliminary brief be served.
- (3) If the accused gives notice under subsection (2), the informant must serve on the accused a preliminary brief within 14 days after receipt of the notice.
- (4) Nothing in this section prevents the informant from serving a preliminary brief on the accused at any other time.

CRIMINAL PROCEDURE ACT 2009 - SECT 36

How preliminary brief must be served

- (1) A preliminary brief must be served personally on the accused in accordance with section 391 unless the informant is satisfied that ordinary service is appropriate in all the circumstances.
- (2) In considering whether to effect service of a preliminary brief by ordinary service, the informant must consider whether it is an appropriate method of service in all the circumstances as known by the informant including—
 - (a) the nature and gravity of the alleged offence;
 - (b) whether the accused has previously been found guilty or convicted of any similar offence;
 - (c) the period of time that has elapsed since the accused's address for service was ascertained;
 - (d) the manner of service of the summons to answer to the charge.

CRIMINAL PROCEDURE ACT 2009 - SECT 38

Requirements for informant's statement in preliminary brief

A statement by the informant in a preliminary brief must be—

- (a) in the form of an affidavit; or
- (b) signed by the informant and contain an acknowledgment signed in the presence of a person referred to in Schedule 3 that the statement is true and correct and is made in the belief that a person making a false statement in the circumstances is liable to the penalties of perjury; or
- (c) in a form, and attested to in a manner, prescribed by the rules of court.

Application

Definitions: It is important to understand the definition *in this scenario* of a protective services officer. The Criminal Procedure Act clearly defines a police officer and PSO, so for the purposes of the CPA, they are different.

PSO's are also not considered to be 'public officials'.

s. 5 CPA: BLOGGS must commence a criminal proceeding by way of filing or signing a charge-sheet for Possess DOD in accordance with s. 6. The practical difference between *filing* OR *signing* has to do with s. 12 v. s. 14.

s. 6(1)(a) CPA: Filing the charge sheet is when the informant goes down to the court and gives the court the Original copy. They are now 'filed'. You go and execute that summons and let the court know by way of the Execution copy.

s. 6(1)(c) CPA: Signing the charge sheet is when the informant issues his own summons, pursuant to s. 14 and signs the charge. They then serve this (commonly known as 'issue process') and give the Court all the copies of the charges at once.

s. 6(3) CPA: Importantly, BLOGGS must ensure he has signed the charge sheet himself, as the informant. Without doing so, BLOGGS isn't the informant. There can sometimes be a practice of allowing Sergeants or Police to sign the charge sheets and make the PSO a 'nominal informant'. This is not the purpose of the nominal informant system and the buck will rest with the person who signed the charges.

s. 12 CPA: BLOGGS will need to have the Magistrates' Court issue a summons pursuant to (1)(a). He can do this by post, eDocs or in person. (4) permits a registrar to then issue the summons in answer to the charges. Were this to be done by way of a warrant, an Affidavit would need to be signed by a Sergeant and included by BLOGGS for the court to issue the warrant.

s. 14 CPA: BLOGGS doesn't have this power available to him. PSO's are not directly mention in the section and "member of police force" is not used. BLOGGS cannot issue his own charges. He can still sign the part that says "informant signature", just not the part on the Charge-Sheet and Summons that talks about issuing a charge.

s. 38 CPA: BLOGGS can be the informant and sign the Statement Made By Informant. Schedule 3 includes a "member of the police force." There should be no issue with it being signed.

Conclusion

- PSO's can sign charge-sheets to commence a criminal proceeding; but s. 14 CPA does not apply to them (charges must be issued by the court).
- PSO's can compile preliminary briefs of evidence for any offence under the CPA.